

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Mac Muir	Team: Squad #6	CCRB Case #: 202004432	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury		
Incident Date(s) Sunday, 06/21/2020 12:29 PM	Location of Incident: Opposite 140 Beach 113th Street		Precinct: 100	18 Mo. SOL 12/21/2021	EO SOL 5/4/2022
Date/Time CV Reported Sun, 06/21/2020 6:05 PM	CV Reported At: CCRB	How CV Reported: Social Media	Date/Time Received at CCRB Mon, 06/22/2020 8:18 AM		

[illegible]

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM David Afanador	31730	936100	100 PCT
2. POM Scott Stoner	30581	965550	106 PCT
3. POM Christopher Connolly	15742	957481	100 PCT
4. POM Joseph Joy	14669	956013	100 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Jacobi	26543	965214	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM David Afanador	Force: Police Officer David Afanador used physical force against § 87(2)(b)	
B.POM Joseph Joy	Force: Police Officer Joseph Joy used physical force against § 87(2)(b)	
C.POM Scott Stoner	Force: Police Officer Scott Stoner used physical force against § 87(2)(b)	
D.POM Christopher Connolly	Force: Police Officer Christopher Connolly used physical force against § 87(2)(b)	
E.POM David Afanador	Force: Police Officer David Afanador used a chokehold against § 87(2)(b)	

Case Summary

On June 21, 2020, § 87(2)(b) reported this incident to the CCRB via Twitter, on behalf of § 87(2)(b). Twenty additional reporting non-witnesses submitted complaints to the CCRB regarding this incident. This case was sensitive because it received extensive international media coverage.

On June 24, 2020, a call was placed to § 87(2)(b)'s attorney § 87(2)(b), who said he would not allow § 87(2)(b) to provide a statement to anyone other than the Queens District Attorney's Office. He asked that the case be closed – pending litigation until the conclusion of any litigation against PO Afanador. He asked that the investigation contact him directly at the conclusion of any litigation.

On July 1, 2020, Queens DA's Officer Bureau Chief James Liander requested that the case be put on a DA hold pending the prosecution of Police Officer David Afanador. On March 22, 2021, the Associated Press reported that PO Afanador had been arrested for discharging his firearm into the ocean. On June 16, 2021, ADA Phyllis Weiss stated that PO Afanador had resigned from the NYPD. On September 14, 2021, the New York Daily News reported that a Queens grand jury had declined to prosecute PO Afanador. On September 20, 2021, ADA Weiss confirmed that the grand jury had declined to prosecute. On October 4, 2021, she confirmed that the case had been officially dismissed and that the CCRB investigation could proceed. On October 25, 2021, the NYC Comptroller's Office confirmed that § 87(2)(b) had submitted a notice of claim regarding this incident, on behalf of § 87(2)(b) in which he sought \$25,000,000.

From October 22, 2021 to November 24, 2021, seven calls were placed to § 87(2)(b) office requesting his response. Each time, a receptionist stated that § 87(2)(b) would call back shortly.

On November 19, 2021, an email was sent to § 87(2)(b) asking how he wanted to proceed with the investigation. It was not returned by the server.

On November 30, 2021, § 87(2)(b) who witnessed the incident, emailed the investigation that he did not want to provide a statement to the CCRB.

§ 87(2)(b)
On December 10, 2021, and December 17, 2021, § 87(2)(b)
§ 87(2)(b) § 87(2)(b)
§ 87(2)(b) advised that because he had not been able to reach § 87(2)(b) he would have his sister contact the investigation to inform as to whether § 87(2)(b) would allow an interview.

From December 10, 2021, to December 20, 2021, three additional calls were placed to § 87(2)(b) office requesting his response. Each time, he was not available. On the second call, the receptionist stated she would send § 87(2)(b) a text message with contact information for the investigation. On the third call, the receptionist was advised that the case would be closed – pending litigation, unless § 87(2)(b) confirmed whether § 87(2)(b) could be interviewed. Since then, neither he nor § 87(2)(b)'s sister have contacted the investigation.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

Squad: 6

Investigator:	<u>Mac Muir</u>	<u>Supervising Investigator Muir</u>	<u>12.23.21</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Jessica Peña</u>	<u>IM Jessica Peña</u>	<u>12/28/2021</u>
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date